



**Incline Village General Improvement District
Board of Trustees**

*Michaela Tonking, Chair
Michelle Jezycki, Vice Chair
Mick Homan, Treasurer
Dave Noble, Secretary
Raymond Tulloch, Trustee*

MEETING MINUTES

ADJOURNED MEETING OF THE IVGID BOARD OF TRUSTEES

HELD AT 893 SOUTHWOOD BLVD., INCLINE VILLAGE, NV ON April 29, 2026

*Viewing available by clicking the link and choosing BOT Meeting April 29, 2026, at
<https://ivgid.portal.civicclerk.com/event/>

The Meeting of the Incline Village General Improvement District Board of Trustees was called to order at 5:00 PM

A. PLEDGE OF ALLEGIANCE*

Trustee Michaela Tonking led the Pledge of Allegiance.

B. ROLL CALL OF TRUSTEES*

Trustees Mick Homan, Michelle Jezycki, Dave Noble, Ray Tulloch and Board Chair Michaela Tonking were all present during roll call.

C. INITIAL PUBLIC COMMENTS

The initial public comment period is available to be viewed/ heard at:
<https://ivgid.portal.civicclerk.com/event/751/media> **Media Timestamp (00:04:17 - 00:32:19)**

Media Timestamp (00:04:22 - 00:07:49)

Public comment provided by Sandy Burnell is transcribed below:

I have been told that you guys are considering putting a fence around the pickleball and tennis courts, which most of us believe. I think it is a really bad idea. I don't know what would be the purpose of it, because it would obviously be a very great expense. The purpose is to try to keep people from playing when they shouldn't be playing. I think there's got to be a lot better ways of policing that and that would be a lot more cost-effective without also restricting our ability, because those trails are used by everyone in Incline Village all the time. Every day, people are walking those trails and to decide that you're going to interrupt.

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I'm really trying to figure out what you're trying to do because it doesn't seem like Incline Village that I moved to in 2017. It's really become unfriendly, and I'm kind of laying that at you guys' feet. I don't feel the same about Incline Village as I did in 2017 and the pickleball itself used to be a friendly place and the amount of money that you're now charging is more than I can ski for, and I know we don't have the kind of employees, and you know we don't pay the kind of salaries that we do for Diamond Peak.

I can go skiing for less than I can play pickleball, and yet we employ hundreds of employees up there, and we have to groom those slopes, and we have machines that make snow. All the expense of that and the expense of golf courses, things like that. How is it that we don't have more of a community feeling? Like, you know, Carson City, I can go play for free, Reno, I can go play for free, Tahoe Vista, I can play for free, but in Incline Village, you're going to be charged country club prices and not getting country club service because we put 16 people on the same amount of real estate as one tennis court, and yet we don't even we do more than 16 people in an hour because we stand in line to get on that court.

So yeah, it's intrusive, it's invasive, it's excessive. That we can do so many things in this community a lot cheaper than we can play tennis or pickleball, especially pickleball, because tennis at least has some real estate. We have no real estate. We're putting so many people on this little, tiny court that you put two to four people on a tennis court, and we put 16. It feels like you're trying to pay the same price. You're trying to make the pickleball people come up with, whatever money it is you need to fix the tennis courts is what you're trying to do, and I'm sorry tennis should pay for itself and pickleball should pay for itself and, frankly the community the taxes that you're oh my goodness the taxes that you guys put on us this last year is ridiculous.

Media Timestamp (00:07:51 - 00:08:58)

Public comment provided by Sheri Steinberg is transcribed below:

I'm here for the same issue and I just wanted to tell you that I live about 80 feet east of the courts and I have a home office. I'm a court reporter, so I get to work from zoom and I have a perfect view of the courts. I get to be jealous every day and watch everybody play, but I wanted to let you guys know that every day I see the community members walking that pathway and that trail, with their dogs, with their kids, they ride their bikes, all the disc golf players and chasing their Frisbee's. Sometimes they even come into our yard, so, for me, I think it's kind of unfair to take that pathway away from the community.

It's an offense to me, it is unsightly and kind of a negative vibe for pickleball, which is such a positive sport for the community.

Media Timestamp (00:09:00 - 00:12:13)

Public comment provided by Paul Steinberg is transcribed below:

Hi, my name is Paul Steinberg. I'm the USAP ambassador for Incline Village, which means I promote pickleball for the masses, and I try to get more players out there, and I try to do what I can do to help the courts and everybody play. I'm first going to address two issues.

One is the cost of playing pickleball and the other is our defenses, and I'm going to start with the fences. I placed a post on the Incline Village page last week and the reason I did it is because I can talk to all the tennis and pickleball players, but I can't talk to the community at large that walks by our house and when we sit in our backyard we watch people walking from the visitor center through the tennis center. Dozens if not hundreds of people every day pass through that corridor.

Not to mention that we see bears, raccoons, coyotes, skunks and every other kind of critter that we have in town walk through that pathway. Putting up another 10-foot cyclone fence is the last thing we need to keep some people from sneaking onto the tennis courts. More fences don't make better neighbors in this situation.

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Part of the problem with the fences is if you put up fences, you're going to have to lock the back of the courts. You lock the back of the courts and people are going to hit balls over the fence, and now they have got to go get their balls. How do they get their balls?

Looks like about a half a mile walk from what I could tell, to walk all the way around to find their balls. The disc golfers those discs end up on the tennis courts, they end up on the pickleball courts and if they can't get into those courts because the gates are locked, and they can't get it, they're going to have to climb over the fence and I guarantee all those 20-somethings are not going to leave their \$20 discs sitting on the court. They're going to climb over the fence.

The first disc golfer that climbs over the fence and falls and gets hurt, they're going to own the tennis center. Be forewarned. The fences are unsightly.

The maintenance carts from the grounds drive through that path all day, every day. They drive out there, I think there are garbage cans out there that are empty. I think they go out there and maintain part of the disc golf course. I'm not sure what they're all doing out there, but I see the cart go by quite often.

So those are all the reasons not to put up all these fences. There are a lot of different ways we can address if you think that people are sneaking onto the courts if it's that big of a problem. We don't. It doesn't appear to be.

My suggestion to Michaela was, and this is something I was working on with Indra before he left, was to put up a camera up there so that people in the offices can go, Hey, we have 10 pickleball players, and we have 12 people on the courts. Somebody goes up there to solve the problem. Done.

Not a big deal. Cameras are easy. The other thing I want to talk about is, again, you've combined pickleball and tennis into one cost bucket.

Tennis players: there are two tennis players on a tennis court, maybe four for two hours on a pickleball court in the same amount of time. You get 64 people running through a pickleball, one tennis court-sized area in an hour. So, 128 pickleball players could use the same amount of real estate, yet we're paying the same price. It's \$4.36 to join the tennis or the tennis center for the season, which is essentially five months. That's \$87.20 a month. It's \$3.67 next year to go for a full unrestricted season pass to ski. You can ski seven days a week for six months. That comes out to \$61 a month. Hard to fathom how we got these two pricing.

Media Timestamp (00:12:15 - 00:14:12)

Public comment provided by Chris King is transcribed below:

I just wanted to put the recreation fee into perspective. Before 2023, the total fee was stable between \$760 and \$830 for over a decade. Now we're talking about a fee that's double that amount.

The fees, let's see 2022, were \$780, 2023 was \$780 and went down after that. I don't think that probably made a lot of sense. This year \$1,375 and the proposal is \$1,575. I can't think of another community in the state of Nevada where you have anything like that. There are a lot of people who don't actually use the facilities that are required to pay that. It's part of our way of life here, so I don't object to it in principle, but I do object to the amount that has gone up. We've seen inflation since 2023 go up by about 12%, and we're talking about a 100% increase in the recreation fee.

So, I would just encourage you to do anything you can to stop increasing the fee or at least minimize it and not go above inflation. Thank you.

Media Timestamp (00:14:14 - 00:17:32)

Public comment provided by Judith Miller is transcribed below:

Thank you, Trustees.

Gee, I thought it was going to be the only one here. Anyway, I want to thank Mr. Rigdon for

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validating my husband's assertion in his action for declaratory relief over a decade ago. It violates Dillon's rule and exceeds its powers. It's never been given the power to provide senior transportation, and people are wondering why the facility fees are going up. Well, you'll find catering services, retail sales of clothing and sporting equipment, bars, and restaurants all by Dillon's rule and the Nevada Supreme Court rulings may only be permitted as necessary, not just convenient accompaniments to sports and recreation activities.

So, maybe it's time for IVGID to get out of some of those money-losing businesses. Next, Ordinance 7 changes regarding beach access for employees circumvents NRS 261 407A. The Code of Ethics for public employees, like it does in almost every other state, makes it clear that a public employee when they use public resources for which the members of the public pay a fee, the employee shall reimburse the public agency that fee.

Non-resident, non-owner employees who use the beaches must promptly reimburse the district the amount of the facility fees. That's a fee, right? At the other venues, employees must pay the same applicable rate as any other member of the public, and please don't call it de minimis.

I'm sorry when something is worth thousands of dollars, it's not de minimis. You're confused. And on the subject of Ordinance 7 changes, where is the previously identified and much needed clarification as to when recreation privileges will be withdrawn for late payment of facility fees and property tax installments.

Despite remarks by one Trustee to the contrary, there's no authority in NRS 318 to charge a standby fee for availability of facilities. Yet that's one way the district justifies the fee. Just ask yourselves why don't all the other public agencies in the state charge a similar fee.

As one gentleman pointed out, he doesn't know any other place that charges a similar fee. Government. We're talking about government. We're not an HOA.

I bet the Douglas County School District would love to have a facility fee. And there's still a lack of transparency. I've heard it's said that we don't allow public records requests to be satisfied if they're asking for data from a database when the Nevada Supreme Court repeatedly emphasized that if the data is readily available, public agencies are required to provide it in any available format.

We've spent millions on a new financial system, so please take care of that. Thank you. Please include my written statement.

Media Timestamp (00:17:34 - 00:21:00)

Public comment provided by Jack Dalton is transcribed below:

I'm Jack Dalton. I have lived here for 11 years. So, I've gone to a lot of meetings, and I usually keep my mouth shut because, unfortunately, this board doesn't listen.

So now I have an issue, that includes you because you're looking at me. That's good. I could say a few more things about you, but I'm not going to do that. Then and you too.

Then the issue is we need to have information. We don't have information. We need to have issues with what's online.

You can't get the numbers there. So, we have no concept by talking, and I've done that for some time we have no concept of what or how many people are online. So, if you're going to have something online, let's have it.

Let's have everybody show up here so we can see that we don't have that. Then we have the issue about, I can't read my oh the issues about if everybody here in the community is nobody's listening, so we have people up here that have not been here before. Well, I have ten more things, but that's okay.

There are some communities and insights and towns and cities that have discussions before the agenda. I'm not discussing the agenda and what I am saying is, if you do three minutes before, that's what Washoe County does too. If you do that before everything gets buried. So, let's change that issue.

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I challenge you, that's a four-to-one that's including you too, Mr. Noble. You change, you change this, that you put the agenda up here publicized and then you ask then the people can make comments before you make the votes. Let's see what happens.

How much, I have 30 seconds? Well, I got 10 more things, but then I'll give you the next thing. The verbal federal legislature it's small potatoes. No question, I like to say small potatoes. I'd like to know what exactly he does.

You know, when you have all these issues for the Democrats and the Republicans get paid for all of these things, and we're a small, really small potato.

Media Timestamp (00:21:01 - 00:24:04)

Public comment provided by Cheri Kratka is transcribed below:

I'm Cheri Kratka, and I've lived here for about eight years. I'm a pickleball player, so I'd like to talk about fencing, but I also want to ask all of you financially, have you looked at what it would cost to do the fencing and how much money you're going to get back if one or two more people sneak in?

I mean the return on investment. Do you understand that term? Is it really worth it? And one of the things that irritates pickleball players is that you don't know your financial system and do not know how many pickleball players pay versus tennis players pay.

And so, we have 16 pickleball players could play on one court versus two to four tennis players. But you really don't know at the end of the year how much money you collected. Let's say it's a thousand dollars.

Was it \$50 for pickleball players or \$50 for tennis players at \$950? What is this, what is the financial justification? I feel that you could put up for probably about the same price something at the gates where you take a card, and you swipe it, and you get the gate open.

Now you could have two gates, and then you have the camera and if you see that I've taken five of my buddies in, you can run up there and yell at me. But for the most part, the pickleball players I've seen look at who's there right now, because we have to wear this little band and if we see somebody without a band, we usually go over and say to them, "You know you have to go pay a fee." So, I don't think there's that many people who are sneaking in, and I don't think you guys have any idea how many people are sneaking in.

Do you? Probably not because you don't have good systems. So, I really recommend that you think about alternatives that could give you not only the amount of pickleball players that come onto the courts by having us check in, then you know if there was anybody that wasn't paying.

The other issue I have is, I agree with what we are doing with the fee that's on our property tax. You know this thing has gone up and up and up, and what are we actually using it for? I feel that there are decisions being made that do not have a financial return to this community.

One of them probably being the snack bar. Why don't you just go and get two food trucks to come in, and you can have a variety. I could have Taiwan one day. I could have a Mexican the next day, you know and I wouldn't have to have employees and manage them.

I don't think we do a good job of managing our employees and getting a return on our investment. So please look at alternatives when you make a decision that sounds goody-goody-goody but maybe doesn't have a financial return. Thank you.

Media Timestamp (00:24:06 - 00:25:40)

Public comment provided by Ryan Searle is transcribed below:

Good evening, I'm Ryan Searle. My wife Stephanie and I, travel quite a bit and when we play pickleball all over the country and other countries, and we're playing in an outdoor facility, I don't think we've ever been charged. There's one place I can think of that charges five dollars, but for the most part, we never pay to play outdoor pickleball and, as I'm sure you know, pickleball facilities are going up all across the country and when you go play pickleball everywhere, the

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courts are in excellent condition, they're taken care of.

So, we are now paying, I think, eight hundred seventy dollars for the two of us to play pickleball here in Incline for six months, and it's disappointing. Worse than that is that some of our friends are no longer playing here. People that live here and are driving elsewhere to play pickleball. It's just kind of disappointing. Our facilities. I'm sure that I'm wrong, but I can't think of another facility that's in more disrepair than ours. So, I'm paying a lot more money to play at a facility that's not maintained very well.

I would also like to request that if the bathrooms are going to be down for an extended period of time, we get some port-a-potties, or something would be great. That's it. Thank you so much.

Media Timestamp (00:25:42 - 00:28:04)

Public comment provided by Steven Ross is transcribed below:

Hi guys my name is Stephen Ross. I'm a resident here in Incline Village and I have a couple of comments that are primarily directed to the members of the community. First, though, I want to congratulate our trustees and staff on several upgrades to how you communicate with our residents.

Two examples come to mind. The first is the upgrade to the reserve fund policy, which is now clear and understandable. I believe this new policy will be valuable for many years to come.

The second is the legislative agenda, which gives everyone a workable and aspirational pathway to interacting with all levels of government. I do believe that most of our community members feel that our recreational facilities are a tremendous asset for them individually to maintain an active lifestyle as well as an enhancement to our property values. Anything man-made requires routine maintenance to prevent the ravages of weathering and mechanical wear and tear.

Looking at the reports, it appears to me that many of our recreational facilities maintenance schedules have fallen behind over the last few years. I believe it is essential that these facilities be maintained and, if possible, upgraded, so that I would like to applaud our trustees and staff for all the projects that are beginning this summer. These include the beach house replacement, upgrades to the Chateau, bike park, skate park, rec center, champ course cart pass and preventative pavement work.

This is an incredible amount of progress in a single year. None of us want to pay more in our yearly recreation fee than is appropriate to keep our recreation facilities in tip-top shape, but I do want to have a maintenance schedule that is adequate to keep them running and safe. Some residents feel these fees are raised too rapidly, but I believe that if you were to account for inflation, the amount that we pay is now about equivalent to the amount we paid some 20 years ago, and I encourage you to keep up the good work.

Thank you.

Media Timestamp (00:28:04 - 00:32:19)

Public comment provided by Lynette Cardinale is transcribed below:

Lynette Cardinale, Incline Village resident. Well, it's nice to hear other people are disgruntled as well as many of us have been for a long, long time. The Rec. Fee is absolutely atrocious to the people here.

You are no longer community minded. It is not what we wanted, and I'd like to remind Mr. Homan, who attended a cafe and sat at the edge of his seat when Frank Wright mentioned to you that you were going to raise the Rec Fee. Not that it's going to be you alone, but you are Rec Fee minded, and you said in your campaign you'd like to see it to \$2,000.

Well, you're getting there. And you sat at the edge of your seat and said, I find that laughable. Are we laughing now?

Because many are not. Again, I'm going to go back to the elderly woman. The senior woman that was here for 40 years couldn't afford the Rec Fee because it went up so high, and she had

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to live with somebody, or someone had to live with her in order to get her dues paid. After living here for 40 years and being a senior citizen while you give everything to employees which are not legal under our Ordinance 7 laws that were written and also discussed by two other lawyers that you just irrevocably just slide by.

So no, you are no longer community minded. I have been here since 1992, and I've never seen such division in the community. It started with the recall, then you fired Mr. Walrack. So that you can have someone out-of-state to manipulate. And I don't appreciate that the senior services of the cafe, Conversation Cafe, is maybe on the chopping block. That's always been a sacred cow in Incline. But again, you're not community minded.

So, I needed to remind you of that. But it's wonderful to hear from other people in the community that I have not seen in all the years I've been here come to a meeting but also have the same regard for how this place is being managed. And so no, and I really don't appreciate your comment, GM Harrison, that when you came to the cafe, I purposely didn't come that day because I wanted to see if someone else would speak up other than myself that we were too political.

That's none of your business. Those are our meetings and eating chicken soup at one's kitchen table anymore has become politics. Thank you.

D. APPROVAL OF AGENDA

Item D. Discussion and Approval of the Agenda is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media> **Media Timestamp (00:32:21 - 00:34:25)**

Chair Michaela Tonking opened discussion on approval of the agenda.

A flexible agenda was proposed to allow recognition of Employees to occur earlier in the meeting.

Several changes to the agenda were introduced:

1. Item H.6 Review, and provide feedback for FY27 District Senior Program Operating Plan was removed from the agenda to allow more time for development and additional ideas.
2. Item G.5 was removed from the consent agenda and from the meeting entirely due to an unresolved issue; it will return at a later date once staff completes additional steps.
3. Item G.8 (Reorganization/Reclassification) was moved from the consent agenda to general business.
4. The reclassified Item G.8 will appear as Item H.12 in the revised agenda.

With no objections, Item D was closed, and the flexible agenda was approved.

L. GENERAL BUSINESS - (For possible Action)

H.1 (For Possible Action) Adopt a Proclamation Recognizing and Thanking Steven Phillips for his Service to the District.

Item H.1. Proclamation Recognizing and Thanking Steven Phillips for his service and dedication to Incline Village General Improvement District is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media>

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Media Timestamp (00:34:22 - 00:41:14)

Chair Michaela Tonking presented a proclamation recognizing Stephen Phillips for his 33 years of service with IVGID and his 50-year career in public parks management. Highlights included his leadership in facility improvements, irrigation modernization, community programs, and employee development. His positive impact on team culture and community service was emphasized.

MOTION: to Adopt a Proclamation Recognizing and Thanking Steven Phillips for his Service to the District.

By Trustee Chair Tonking, Seconded by Trustee Homan

YEAS: Trustee Chair Tonking, Trustee Jezycki, Trustee Noble, Trustee Homan, 5
Trustee Tulloch 0

NAYS: None

MOTION PASSED

H.2 (For Possible Action) Adopt a Proclamation Recognizing and Thanking Alfonso Gutierrez for his Service to the District.

Item H.2. Proclamation Recognizing and Thanking Alfonzo Gutierrez for his service and dedication to Incline Village General Improvement District is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media>

Media Timestamp (00:41:16 - 00:46:45)

Chair Michaela Tonking presented a proclamation recognizing Alfonso Gutierrez upon his retirement after 33 years of service with IVGID. She noted his long tenure in the Public Works Pipeline Division, his reliability during emergencies, his technical contributions including metal fabrication, and his strong community involvement. His volunteer work, participation in a federal ceremony, and longstanding dedication to serving residents were highlighted. The proclamation formally honored his professionalism, impact, and legacy.

MOTION: to Adopt a Proclamation Recognizing and Thanking Alfonso Gutierrez for his Service to the District.

Moved By Trustee Jezycki, Seconded by Trustee Homan

YEAS: Trustee Chair Tonking, Trustee Jezycki, Trustee Noble, Trustee Homan, 5
Trustee Tulloch 0

NAYS: None

MOTION PASSED

E. BOARD OF TRUSTEES UPDATE - (Not for possible Action) Updates are intended to inform the Board and/or the public. The Board of Trustees will not deliberate or take action with respect to any of the reported items.

Item E. Board of Trustees' Updates are available to be viewed/heard at:

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<https://ivgid.portal.civicclerk.com/event/751/media> **Media Timestamp (00:43:48 - 00:52:12)**

Media Timestamp (00:46:54 - 00:48:12)

Trustee Homan provided an update on the recent Audit Committee meeting held the previous day. Updates included:

- The Rubin-Brown audit report has been officially closed. Of the 41 findings identified, 36 have been fully resolved, while the remaining 5 findings have been addressed but require additional time for full automation of improvements in the Tyler system. He clarified that these items will remain in ongoing reporting to the Audit Committee.
- The Audit Committee finalized its Annual Report of duties to the Board, which will be presented at an upcoming Board meeting.
- The Committee also reviewed and updated the Audit Committee Charter, incorporating minor edits that will be brought forward to the Board for approval at a future meeting.

Media Timestamp (00:48:14 - 00:52:10)

Vice Chair Jezycki addressed several public comments, focusing on matters related to tennis and pickleball operations and facilities. The items she addressed included:

- The Board continues to revisit the topic to ensure accurate assessment and decision-making and appreciates increased community participation in recent meetings.
- She emphasized concerns regarding unauthorized use of the facilities, noting instances of non-paying individuals entering the courts, creating challenges for staff and impacting revenue needed for maintenance.
- The Board is exploring solutions such as improved access controls, including potential card-based systems, and is evaluating methods to better track usage data for tennis and pickleball.
- Vice Chair Jezycki highlighted the district's significant deferred maintenance needs, explaining that past reductions in fees—once in the \$700–\$800 range—have contributed to current funding gaps for capital projects and required repairs.
- She encouraged continued community engagement and collaboration to help identify effective solutions and support long-term asset stewardship.

Chair Tonking thanked the Vice Chair for her comments and, seeing no further updates from Trustees, closed Item E.

F. REPORTS TO THE BOARD - (Not for possible Action) Reports are intended to inform the Board and/or the public. The Board of Trustees will not deliberate or take action with respect to any of the reported items.

F.1 (Not for Possible Action) Verbal Federal Legislative Lobby Update by Olivia Sanford with Marcus G. Faust PC (Requesting Staff Member: Director of Public Works Kate Nelson)

Item F.1. Verbal Federal Legislative Lobby Update by Olivia Sanford with Marcus G. Faust PC is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media>
Media Timestamp (00:52:16 - 01:08:00)

Director of Public Works Kate Nelson opened the presentation with an introduction to Olivia Sanford, Vice President of Government Affairs, Marcus Faust PC

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Ms. Sanford provided a comprehensive update on federal legislative developments and funding opportunities relevant to Incline Village General Improvement District (IVGID). She highlighted the transition to a new presidential administration and congressional session, noting changes in agency leadership, grant-making processes, and legislative priorities. Because of recently issued executive orders, federal grants now require personal approval of agency heads, resulting in delays. However, new grant notices are expected to increase beginning in May.

IVGID continues to benefit from strong support from the Nevada Congressional Delegation, and ongoing efforts include maintaining existing relationships and establishing new ones with committee staff and federal agencies.

Key components of the update included:

- **Federal Grants:** Monitoring of grant programs across EPA, DOT, DOI, Army Corps, and FEMA. New grant opportunities are expected soon.
- **Congressional Appropriations for FY27:**
 - IVGID submitted a \$1,400,000 appropriation request to Senators Rosen and Cortez Masto, and Nevada Congressional representative Amodei for SCADA system upgrades supporting water/wastewater monitoring, efficiency, cybersecurity, and resilience.
 - Delegation decisions on championed projects are expected shortly. IVGID has a positive history of securing appropriations funding.
- **Army Corps Section 595 Program:**
 - IVGID has received roughly \$20,000,000 historically for pipeline and pond lining projects.
 - Recent successful effort expanded the program's spending cap by \$365,000,000, ensuring continued eligibility for future projects.
- **Lake Tahoe Restoration Act:**
 - Recently extended for ten years (expired in 2024).
 - First-time direct appropriation of \$2,100,000 for water infrastructure in FY26.
 - Advocating for increased funding in FY27.
- **Infrastructure Investment and Jobs Act:**
 - Expiring this year, efforts are underway to maintain funding levels for SRF programs.
 - IVGID previously secured a \$52,000,000 SRF loan, utilizing only \$41,000,000.
- **Incline Village Fire Protection Act:**
 - Would convey two federal parcels near Incline High School for public recreation, dog park use, hazard-fuel management, and trails.
 - Bill included in Congressional representative Amodei's Northern Nevada Economic Development Bill.
 - Also part of Senator Rosen's Truckee Meadows Public Lands Management Act.
 - Conveyances are non-controversial; advancement depends on congressional action.

Summary of Board Discussion with Director of Public Works Kate Nelson and Olivia Sanford, Vice President of Government Affairs, Marcus Faust PC:

- **Support for SCADA Appropriation:**
 - Vice Chair Jezycki asked how trustees and community members could support the SCADA appropriations request.
 - Ms. Sanford advised that community letters of support would be helpful once the delegation confirms which projects advance. Her office can assist in drafting letters.
- **Water Infrastructure Funding Concepts:**
 - Trustee Homan asked about packaging smaller water line replacements to pursue preventative instead of reactive funding.

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- Director Nelson and Ms. Sanford confirmed they are already collaborating to identify eligible projects, including Tyner area line replacements and potential water storage needs.
- Creative funding pathways (EPA, USDA, FEMA, Lake Tahoe Restoration Act) are being explored.
- Coordination with Capital Planning:
 - Discussion on incorporating the Five-Year CIP into federal funding strategy, including opportunities for Building B replacement, SCADA control center needs, and laboratory expansion.
- Backup Power for Water Delivery:
 - Trustee Noble emphasized the importance of backup generators for water delivery during power outages and wildfire scenarios.
 - Ms. Sanford indicated FEMA funding may be viable and will monitor for opportunities.

Chair Tonking expressed appreciation for the detailed update and requested continued guidance on how Trustees can engage more effectively on major Federal Initiatives.

Ms. Sanford thanked the Board and staff for the opportunity to present, concluding the discussion.

G. CONSENT CALENDAR - (For possible Action)

Item G. Consent Calendar approval is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media> **Media Timestamp (01:08:05 - 01:14:50)**

Chair Tonking introduced the Consent Calendar, noting that Item G.5 had been removed, leaving eight items for consideration. She read each item into the record:

Item G.1: Approval of Board and Trustee meeting minutes.

Item G.2: Grant of easement to NV Energy on district property for construction and operation of underground communication facilities and electric lines.

Item G.3: Approval of an MOU between the Nevada Tahoe Conservation District and IVGID for the Lower Rosewood Creek Aquatic Organism Passage Project.

Item G.4: Grant of easement to Sierra Pacific Power Company / NV Energy for underground communication and electric system facilities.

Item G.6: Approval and authorization for an agreement with Affordable Striping and Sealing LLC for the Spring Pavement Maintenance Project in the amount of \$183,000.

Item G.7: Review and acceptance of final changes to Reserve Policy 7.1.

Item G.9: Approval and adoption of revisions to Whistleblower Policy and Procedures 15.2 as recommended by the Audit Committee.

Trustee Declaration (Trustee Dave Noble)

Before the vote, Trustee Noble made a statement regarding Items G.2 and G.4.

He explained that he had previously recused himself from NV Energy–related items due to: A past consulting agreement with NV Energy; and prior involvement in related subject matter before the Nevada Public Utilities Commission. Trustee Noble clarified that he no longer has a consulting agreement with NV Energy, does not anticipate one, and that the subject matter of these easements does not relate to his prior regulatory work. He stated his intent to participate in the vote on these items.

MOTION: to Approve **Items G.1, G.2, G.3, G.4, G.6, G.7, and G.9** on the Consent Calendar.
Moved By Trustee Homan, Seconded by Trustee Jezycki

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YEAS: Trustee Chair Tonking, Trustee Jezycki, Trustee Noble, Trustee Homan, Trustee Tulloch **5**
NAYS: None **0**

MOTION PASSED

- G.1 (For Possible Action) Approval of the IVGID Board of Trustees Meeting Minutes for April 8, 2026. (Requesting Staff Member: District Clerk Heidi White)**
- G.2 (For Possible Action) Grant of Easement to NV Energy on District Property APN 131-280-05 (SPS-08) and 131-240-02 (Championship Golf) for the purposes of Constructing, Operating, Adding to, Modifying, Removing, Accessing and Maintaining Above and Below Ground Communication Facilities and Electric Line Systems. (Requesting Staff Member: Director of Public Works Kate Nelson)**
- G.3 (For Possible Action) Approval of a Memorandum of Understanding (MOU) between Nevada Tahoe Conservation District and Incline Village General Improvement District for the Lower Rosewood Creek Aquatic Organism Passage Project. (Requesting Staff Member: Director of Public Works Kate Nelson)**
- G.4 (For Possible Action) Grant of Easement to Sierra Pacific Power Company, doing business as (dba) NV Energy on District Property APN 127-280-01 (Incline Beach) Purposes of Constructing, Operating, Adding to, Modifying, Removing, Accessing and Maintaining Above and Below Ground Communication Facilities, Electric Line Systems, and Associated Appurtenances. (Requesting Staff Member: Director of Public Works Kate Nelson)**
- G.5 (For Possible Action) Approve and Authorize the Board Chair and Board Secretary to Sign and Execute an Agreement between Incline Village General Improvement District and Olympus & Associates, Inc. for Exterior Re-coating of Water Reservoir R6C-1; FY2025/26 Utilities: Water: CIP #2221WS22601; in the Amount of \$199,000.00; and Authorize staff to Execute Change Orders for Additional Work if required, of Approximately 5% of the Construction Contract Value not to Exceed \$10,000; FY 2025/26; Utilities: Water: CIP #2221WS22601; Discussion and possible Action. (Requesting Staff Member: Director of Public Works Kate Nelson)**
- G.6 (For possible Action) Approve and Authorize the Board Chair and Board Secretary to Sign and Execute an Agreement between Incline Village General Improvement District and Affordable Striping & Sealing LLC., for the 2026 Spring Pavement Maintenance Project in an amount of \$183,412.18; FY 2025/26 various venue-object-7512; and Authorize staff to Execute Change Orders for Additional Work as required, of Approximately 10% of the Construction Contract Value; not to Exceed \$18,500; FY 2025/26 various venue/Object-7512; Discussion and possible Action. (Requesting Staff Member: Director of Public Works Kate Nelson).**

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- G.7 (For Possible Action) Review and Accept the Final Changes to the Reserve Policy 7.1, as Revised per Board Discussed in May 2025. (Requesting Staff Member: Director of Finance Noemi Barter)**
- G.9 (For Possible Action) Approve and Adopt Revisions to Whistleblower Policy & Procedure 15.2, as Recommended by the IVGID Audit Committee on March 31, 2026. (Requesting Staff Member: District Legal Counsel David Rigdon)**

H. GENERAL BUSINESS - (For possible Action)

- H.3 (For Possible Action) First Reading of Ordinance 7 and Set the Time and Date of the Public Hearing for 4:00 p.m. on Wednesday, May 13, 2026. (Requesting Staff Member: Director of Administrative Services Susan Herron)**

Discussion on Item H.3. First Reading of Ordinance 7, and setting the Time and Date of the Public Hearing is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media> **Media Timestamp (01:29:05 - 01:40:12)**

Director of Administrative Services Susan Herron presented the first reading of Ordinance 7, which consolidates prior Board-approved revisions. Minor adjustments were noted, including relocating a paragraph related to National Ski Area Association standards and updating the effective-date section upon adoption.

Trustee Ray Tulloch restated objections to the inclusion of employee access provisions. Trustee Homan requested staff review of punch-card processes (paragraph 82), legal evaluation of paragraphs 92, 95, and related sections affecting property-owner rights, and confirmation that recreation-privilege suspension dates align with tax-payment timelines. Director Herron proposed revising paragraph 45 to reference the fourth tax installment rather than a fixed date.

Questions were raised about restrictions on additional punch cards, particularly regarding golf access; staff will verify current limitations.

Trustees discussed whether to maintain the public hearing on May 13, 2026. Director Herron recommended keeping the date, noting that further adjustments (e.g., punch-card reforms, watercraft-launch provisions) can be addressed in subsequent revisions. District Legal Counsel Dave Rigdon confirmed that changes may still be incorporated at the public hearing.

MOTION: to Accept the First Reading of Ordinance 7 and Set the Time and Date of the Public Hearing for 4:00 p.m. on Wednesday, May 13, 2026.

Moved By Trustee Jezycki, Seconded by Trustee Homan

YEAS: Trustee Chair Tonking, Trustee Jezycki, Trustee Noble, Trustee Homan 4
NAYS: Trustee Tulloch 1

MOTION PASSED

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H.4 (For Possible Action) Review, Discuss, and provide Feedback on the Proposed Legislative Agenda for the 2027 Fiscal Year. (Requesting Staff Member: District General Manager Robert Harrison)

Item H.4. Discussion and Feedback on the proposed FY 2027 Legislative Agenda is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media> **Media Timestamp (01:14:52 - 01:29:02)**

The Board reviewed and discussed the proposed Legislative Agenda for Fiscal Year 2027. Revisions were directed based on Board input. Federal priorities were affirmed with the addition of a new item concerning the need for backup generators at essential emergency-response facilities, including the Recreation Center. At the state level, the Board confirmed support for meeting Department of Taxation fiscal watch requirements, pursuing authorization for the use of treated effluent during fire emergencies, and addressing administrative burdens resulting from abusive public records requests. The Board directed staff to remove the proposed initiative to seek expanded GID authority for transportation services at this time and to re-evaluate the issue following further discussions with Washoe County and Tahoe Family Solutions.

County-level priorities were reviewed, with the Board consensus on the need to advocate for increased county funding for senior services, recreation, and parks. Discussion also focused on workforce housing, during which Board members emphasized the importance of clear communication to the community regarding IVGID's role. The Board affirmed interest in supporting partnerships that address workforce housing challenges without engaging in housing construction. Staff also presented a proposed addition to the legislative agenda regarding the development of a regulatory permitting process for rooftop fire suppression systems. Legal counsel provided clarification regarding IVGID's implied powers under NRS 318.210 and the district's ability to support housing-related initiatives within the scope of its core authorities.

Staff was directed to incorporate all Board recommendations and return the revised Legislative Agenda for consideration on a future consent calendar.

Board Direction:

- Staff to add backup generators for emergency facilities to the federal legislative objectives.
- Staff to remove the proposed request for expanded GID transportation authority from the state legislative objectives.
- Staff to add an item requesting regulatory and permitting requirements for rooftop fire suppression systems.
- Staff to expand county-level priorities to include increased recreation and parks funding and broader transportation considerations.
- Staff to clarify language regarding workforce housing partnerships to reflect that IVGID will not engage in housing construction.
- Board and staff to consider communication strategies to ensure the community understands IVGID's limited role in housing-related initiatives.
- Staff to explore opportunities to rebalance shared recreational facilities usage with Washoe County.
- Staff to continue monitoring the former Incline Elementary School site for potential recreational use and coordinate with the relevant community groups and RTC.
- Staff to prepare and return the revised Legislative Agenda for a future consent calendar Item on a future agenda.

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H.5 (For Possible Action) Review, Discuss and Possibly Approve the addition of a District Sports Field Rental Product for Youth Non-Profit at a Rate of \$30 per hour for Residents and \$38 for Non-Residents. (Requesting Staff Member: Director of Community Services Mike Bandelin)

The Full discussion on Item H.5. regarding the additional District Sports Field Rental Product for Youth Non-Profit is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media> **Media Timestamp (01:40:16 - 01:45:58)**

Director of Community Services Mike Bandelin presented a proposal to establish a new "Youth Nonprofit Hourly" sports field rental product to improve access for youth-serving organizations. Proposed rates were \$30 per hour for residents and \$38 per hour for non-residents, determined through competitive comparisons with regional agencies.

Trustee Ray Tulloch discussed the need to verify nonprofit status and ensure proper documentation, including 501(c)(3) forms and certificates of insurance. Staff confirmed these materials would be required and reviewed as part of the rental process. Trustee Tulloch also asked for clarification regarding the "equivalent nonprofit designation," with staff indicating that program administrators could provide further details.

Trustee Michelle Jezycki expressed support for addressing this service gap and encouraged staff to continue identifying additional opportunities to better serve community groups and improve district operations.

MOTION: to Approve the addition of a District Sports Field Rental Product for Youth Non-Profit at a Rate of \$30 per hour for Residents and \$38 for Non-Residents.

Moved By Trustee Homan, Seconded by Trustee Jezycki

YEAS: Trustee Chair Tonking, Trustee Jezycki, Trustee Noble, Trustee Homan, Trustee Tulloch 5
0
NAYS: None

MOTION PASSED

H.6 (For Possible Action) Review, Discuss and Provide Feedback on the FY2027 Districts Senior Program Operating Plan. (Requesting Staff Member: Director of Community Services Mike Bandelin)

This Item has been moved to a future meeting.

H.7 (For Possible Action) Review, Discuss and Accept the Five-Year Capital Plan. (Requesting Staff Members: District Project Manager Bree Waters and Director of Finance Noemi Barter)

Following a 5-minute break, the Board reconvened to consider Item H.6, previously Item H.7. The full discussion on Item H.6, a review to accept the 5-year capital plan, is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media> **Media Timestamp (01:54:37 - 02:04:45)**

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Director of Finance Noemi Barter introduced the updated five-year capital plan, noting its role in determining the facility fee and supporting long-term maintenance of district assets. She provided historical context, indicating that had the 2010 facility fee of \$830 been adjusted for inflation, it would be approximately \$1,300 today.

1 District Asset and Project Manager Bree Waters summarized updates to the major projects list, highlighting completed and ongoing multi-year projects. Updates to the General Fund, Utility Fund (water and shared public works), and Sewer Fund were described as minimal. SCADA system implementation was discussed with Director of Public Works Kate Nelson advising that a five-year schedule is feasible given contractor limitations.

1 Waters reviewed updates within the Community Services Fund, noting a corrected facilities total and reintroduction of the mountain course fuel tank replacement due to long-standing need. The ski fund includes \$875,000 annually for snowmaking system replacement, with funds advanced to address long lead-time components. The Tennis Center project remains budgeted at \$4.25 million.

A correction was identified in the ice rink capital project schedule; the FY28 amount should reflect \$475,000 rather than \$825,000 after accounting for funds moved into FY27. Trustees discussed clarity of project labeling (CAPEX vs. operations).

Trustees raised concerns regarding total capital expenditures. Trustee Tulloch estimated approximately \$70,000,000 in non-utility projects over five years, noting this equates to roughly \$1,750 per parcel per year and does not include major upcoming items such as Snowflake Lodge. He also referenced historical facility fee components tied to past bond repayment.

Vice Chair Jezycki discussed the need to categorize projects into three separate lists: must-have, delayable, and aspirational tiers; as the Board considers facility fee impacts, referencing the ice rink as an example of an aspirational project.

Following discussion, the Board opted to table Item H.6 pending completion of the subsequent agenda item on facility fees (Item H.7).

The Board revisited Item H.6 (formerly H.7) after completing the facility fee discussion. Trustees reviewed proposed edits to the Five-Year Capital Plan, focusing primarily on the Ice Rink project and related financial adjustments. Clarification was sought regarding whether Ice Rink line items—specifically chiller and electrical upgrades—should be removed, postponed, or reclassified. Consensus emerged to retain the project as a placeholder, moving related expenses to FY28, and directing staff to seek donations to fund chiller and electrical components. The earthwork portion remains in place. FY28 Ice Rink funding was confirmed at a placeholder amount of \$875,000.

Trustees also discussed the Tennis Center reconstruction project. Staff explained that bid documents would include Option 2 with a prestressed concrete bid alternate and noted possibilities for phasing the project across fiscal years to mitigate immediate facility fee impacts, while acknowledging such phasing delays total expenditure.

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MOTION: to Approve the Five-Year Capital Plan as adjusted, including changes to the Ice Rink project and maintenance on the Lakeview lift.

Moved By Trustee Homan, Seconded by Trustee Noble

YEAS: Trustee Chair Tonking, Trustee Jezycki, Trustee Noble, Trustee Homan **4**

NAYS: Trustee Tulloch **1**

MOTION PASSED

H.8 (For Possible Action) Review, Discuss, and Accept the Facility Fee, and Punch Card Values for Fiscal Year 2027. (Requesting Staff Member: Director of Finance Noemi Barter)

Item H.8. discussion and approval of the Facility Fee and Punch Card values is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media> **Media Timestamp (02:04:48 - 02:41:48)**

Director of Finance Noemi Barter and District Asset & Project Manager Bree Waters presented the proposed FY27 facility fee and capital plan. Staff explained that major projects have historically not been bonded, resulting in cash-only funding and increasing pressure on the facility fee. FY27 capital needs total approximately \$11.48 million, driving a proposed facility fee of \$1,570.

Staff and Trustees discussed significant capital requirements across multiple assets, including Snowflake Lodge, tennis court reconstruction, ski infrastructure, Rec Center improvements, and beach facility needs. Trustees debated whether to partially fund operating costs with a community services fund balance, noting an unassigned balance of approximately \$22 million. Concerns were raised about long-term sustainability, the upcoming major Diamond Peak investments, and the risk of depleting reserves.

The Board expressed differing views on affordability impacts on residents versus the necessity of “catch-up” capital investment due to deferred maintenance. Several trustees noted the projected continued rise in capital needs over the next five years. Considerable discussion focused on whether to remove the ice-skating rink project from FY27 and potentially pursue partnerships or external funding. Removal of the ice rink would reduce the facility fee by approximately \$40.

MOTION: to Approve the Facility Fee for Fiscal Year 2027, with the Ice-Skating project removed.

Moved By Trustee Homan, Seconded by Trustee Noble

YEAS: Trustee Jezycki, Trustee Noble, Trustee Homan **3**

NAYS: Trustee Chair Tonking, Trustee Tulloch **2**

MOTION PASSED

Trustees discussed maintaining stability from year to year and referenced last year’s 60% methodology.

MOTION: Set the Punch Card Values at \$865 (rounded to the nearest 5) divided by 5, for Fiscal Year 2027.

Moved By Trustee Homan, Seconded by Trustee Noble

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YEAS: Trustee Jezycki, Trustee Noble, Trustee Homan, Chair Tonking**4****NAYS: Trustee Tulloch****1****MOTION PASSED****H.9 (For possible Action) Review, Discuss, and Provide Direction to Staff following a Presentation by HDR Engineering, Inc. on Alternative Water and Wastewater Rate Scenarios for Fiscal Year 2026/27 (Requesting Staff Member: Director of Public Works Kate Nelson)**

Item H.9. Updated presentation by HDR and Alternate Water and Wastewater scenarios is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media> **Media Timestamp (02:42:19 - 02:58:23)**

Director of Public Works Kate Nelson reported that the Board had requested revised water and wastewater rate scenarios reflecting an accelerated five-year implementation timeline for the SCADA project, rather than the originally planned eight years.

She then introduced HDR Senior Financial Analyst Josiah Close to present the updated presentation from HDR.

Mr. Close began with revenue requirements and rate impacts for FY 2027, noting:

- Accelerated SCADA project costs significantly affect capital funding needs.
- Reserve balances were updated following recent audit findings.
- Capital components of rates are weighted more heavily than base charges to reflect infrastructure investment needs.
- No increase is proposed for the Defensible Space Fee; administrative and usage charges increase at the system-wide average.
- The plan maintains a pay-as-you-go approach with no new debt issuance for water or sewer utilities.

Under the proposed rate structure, a typical water bill would rise from \$78.72 to \$92.50, and a typical sewer bill from \$107.15 to approximately \$122.

Financial Projections and Board Clarifications:

Trustee Mick Homan sought clarification regarding projected deficits.

- HDR clarified that projected shortfalls relate to capital funding requirements, not operating deficits.
- Director Nelson confirmed the District will show net losses in upcoming years, but these will be covered by existing reserves without jeopardizing liquidity.
- Reserves are expected to dip slightly below the 130% minimum target level in FY 2030 but recover the following year.

Implementation and Next Steps

- A public hearing on the proposed rates is scheduled for May 13.
- If approved, new rates will take effect with the June 19 billing cycle.
- The Board confirmed its intent to proceed to a public hearing using the updated rate structure presented by HDR.

Trustee Homan corrected an earlier statement regarding facility fees, noting that Food &

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Beverage and Facilities should be included among revenue-generating operations retained due to strong performance.

H.10 (For Possible Action) Review and Approve the Business Impact Statement Related to Proposed Amendments to the Water and Wastewater Rate Schedules in Compliance with Nevada Revised Statutes (NRS) 237.080. (Requesting Staff Member: Director of Public Works Kate Nelson)

Item H.9. Formerly H.10. Discussion and approval of the Business Impact Statement related to proposed amendments to the water and wastewater Rate Schedules is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media> Media Timestamp (02:58:27 - 02:58:48)

Director of Public Works Kate Nelson presented the Business Impact Statement prepared in accordance with NRS 237.080. Notifications were sent to all commercial customers and the Chamber of Commerce requesting feedback on the proposed water and wastewater rate increases. No comments were received. The Business Impact Statement was provided to the Board as supplemental material for consideration.

MOTION: to Approve the Business Impact Statement Related to Proposed Amendments to the Water and Wastewater Rate Schedules in Compliance with Nevada Revised Statutes (NRS) 237.080.

Moved By Trustee Jezycki, Seconded by Trustee Homan

YEAS: Trustee Chair Tonking, Trustee Jezycki, Trustee Noble, Trustee Homan, 5
Trustee Tulloch 0

NAYS: None

MOTION PASSED

H.11 (For Possible Action) Approve and authorize the Board Chair and Board Secretary to Sign and Execute a Construction Manager At Risk (CMAR) Agreement between Incline Village General Improvement District and Advanced Companies, Inc. for the Championship Course Cart Path Reconstruction GMP1 Project; FY2025/26 Community Services; Championship Golf; CIP #3141LI1202; in the Amount of \$2,230,662.28; Discussion and possible Action. (Requesting Staff Member: Director of Public Works Kate Nelson)

Item H.10. Formerly Item H.11. Discussion and approval of a CMAR construction agreement between Incline Village General Improvement District and Advanced Companies, Inc for Champion Golf Cart Path Reconstruction GMP 1 Project is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media> Media Timestamp (02:59:59 - 03:02:08)

Director of Public Works Kate Nelson presented a request for approval of a Construction Manager at Risk (CMAR) agreement between the Incline Village General Improvement District and Advanced Companies Inc. for the Championship Golf Course cart path

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reconstruction project. The Guaranteed Maximum Price (GMP 1) for the project is \$2,230,662.28. Nelson noted advantages of the CMAR delivery method and confirmed that funding is available through the current fiscal year budget and the FY27 allocation. The agreement includes provisions stating the contract will not proceed if future funds are not appropriated. Work is planned to begin in fall.

MOTION: to Approve and authorize the Board Chair and Board Secretary to Sign and Execute a Construction Manager At Risk (CMAR) Agreement between Incline Village General Improvement District and Advanced Companies, Inc. for the Championship Course Cart Path Reconstruction GMP1 Project; FY2025/26 Community Services; Championship Golf; CIP #3141LI1202; in the Amount of \$2,230,662.28.

Moved By Trustee Homan, Seconded by Trustee Jezycki

YEAS: Trustee Chair Tonking, Trustee Jezycki, Trustee Noble, Trustee Homan 4

NAYS: Trustee Tulloch 1

MOTION PASSED

G.8 (For Possible Action) Eliminate Parks Superintendent and Administrative Services Director Positions and Approve the following Re-Classifications to absorb the Duties: (1) Buildings Superintendent to Buildings & Grounds Superintendent; (2) Parks Supervisor to Assistant Superintendent – Parks; (3) District Clerk to District Clerk / Executive Assistant; and (4) Director of HR to Director of HR / Administrative Services. (Requesting Staff Member: Director of Human Resources Eric Milavsky)

Item H.11. Formerly G.8. to eliminate positions and approve re-classifications to absorb duties is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media> Media Timestamp (02:59:59 - 03:02:08)

Chair Tonking opened discussion on the proposal to eliminate the Park Superintendent and Administrative Services Director positions and reclassify four existing positions. She noted the absence of finalized classification and compensation (class & comp) data and sought clarification before proceeding.

The District General Manager (Harrison) reported that the two eliminated positions represented a combined annual cost of \$556,926. Proposed reclassifications would increase costs by \$94,093, resulting in an estimated annual net savings of approximately \$460,000. He stated that consultant-provided salary range data was complete and aligned with the proposed changes, though comparator and internal equity work remained ongoing.

Trustees discussed concerns regarding timing, transparency, and ensuring alignment with the forthcoming class & comp study. Trustee Tulloch suggested temporary pay adjustments until the study is finalized; however, the Director of Human Resources (Milavsky) advised against temporary upgrades, citing potential operational and morale impacts. Director of Human Resources Eric Milavsky further clarified that the full implementation of the class and comp study would not be feasible until July 1, 2027, due to collective bargaining constraints. Vice Chair Jezycki emphasized the importance of transparency and requested prioritization of the four affected positions in the consultant's work. Trustees generally agreed that the preliminary data suggested the proposed salary ranges were within the market and would not

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conflict with the upcoming study.
Following discussion

MOTION: to Approve the Eliminate Parks Superintendent and Administrative Services Director Positions, and Approve the following Re-Classifications to absorb the Duties: (1) Buildings Superintendent to Buildings & Grounds Superintendent; (2) Parks Supervisor to Assistant Superintendent – Parks; (3) District Clerk to District Clerk / Executive Assistant; and (4) Director of HR to Director of HR / Administrative Services, as recommended.

Moved By Trustee Noble, Seconded by Trustee Homan

YEAS: Trustee Chair Tonking, Trustee Jezycki, Trustee Noble, Trustee Homan 4

NAYS: Trustee Tulloch 1

MOTION PASSED

I. LONG RANGE CALENDAR - (For possible Action)

I.1 (For possible Action) Review, Discuss and possibly Add or Remove Long Range Calendar Items to future Board of Trustees Agendas. (Requesting Staff Member: District Clerk Heidi White)

Item I.1. Long-Range Calendar discussion is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media> Media Timestamp (03:19:07 - 03:22:48)

The Board reviewed upcoming meeting dates and discussed adjusting the May 13 meeting start time to 5:00 p.m. due to a scheduling conflict. Since the related public hearing had not yet been advertised, the change remains feasible.

Staff noted that online listings still show 5:00 p.m.start times for all meetings; corrections will be made to reflect approved updates.

Audit Committee Report and Charter Policy and Procedure 15.1.0, to be updated on the Board of Trustees Long-Range Calendar.

A potential discussion regarding punch cards was identified for May 27 but may be moved to the parking lot for future scheduling due to the complexity of the topic.

The Board discussed the status of the waste management contract. Staff reported an ongoing redline review with no issues expected to prevent completion within the six-month extension. No specific agenda date is currently required.

No additional amendments were requested, and the Board concluded the long-range calendar review.

J. FINAL PUBLIC COMMENTS - Limited to a maximum of three minutes in duration.

Item J. Final Public Comment is available to be viewed/heard at: <https://ivgid.portal.civicclerk.com/event/751/media> Media Timestamp (03:22:49 - 03:34:57)

Media Timestamp (03:23:12 - 03:26:45)

Public comments provided by Jack Dalton are recorded as follows:

It was one of the things I started getting tired of a lot of things, but the first thing was we could talk about history that's Jack Dalton if that's what you're looking for I assume everybody can hear

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me the history read Joy Gums so that's worthwhile up until about the last four or five years, but history is worthwhile second of all the issue about the facility fee and blaming that was the \$300 or \$400 or \$200 and that's the reason why we have to raise it well that was because pay attention please instead of looking somewhere else that's a pattern of what goes on with this committee the reason why is that the bonds was retired and when the bond was retired that was what part of the facility fee was done I don't have as an issue here about what the facility fee is today other than it hurts the community it really hurts the community then comes but don't blame it on this \$300 or \$400 that was a bond that was retired and that was supposed to be in the facility fee the next thing is that the water rate well I could talk about that that's what irritates me we talk about \$78 I don't pay any attention to the water rate I don't say that with pride I just don't look at the details, but then I said jeez it's \$163 how could that be doesn't make sense I don't have any water there's not many people up there it's one person and so there's no water used in the winter for sure you could look it up, and I talked to them, and they were helpful then I talked to some more people so now we have an issue where mine is \$163 .37 of an acre it's on the golf course unfortunately the golf course doesn't water me it would be really good, so I don't have to pay in the summer so you've got a lot of prices up here now you come the people that come to visit me they don't go skiing here I'm a half mile from the skiing and I don't came here to skiing didn't know what the state sales tax from New York really I don't have to pay sales tax that's fantastic but the prices now you get to old enough you don't have to pay for skiing I'm not complaining about that, but the problem is the people who know skiing don't come here they don't come here so I've talked to people at snowflake lodge which is another at least \$50,000,000

Media Timestamp (03:26:46 - 03:30:00)

Public comment provided by Denise Davis is recorded as follows:

Denise Davis, the conversation about the old elementary school site got my attention and the further discussions of it in regard to the ice rink continued my interest. I just wanted to share the information. I believe I understand about where that project is I did quickly text a couple of other people who are following the project, and so apologies if GM Harrison knows things I don't know, but at the December. First of all, the TTD (Tahoe Transportation District) owns the old elementary school site not the RTC. The TTD, it's OK, we have a lot of acronyms. At the December 2025 TTD board meeting, the TTD decided to offer Washoe County the opportunity to develop the site into affordable and or workforce housing because the old elementary school site will not be developed into a mobility hub and I won't try to explain the intricacies of how the TTD and the TRP are related. We're just going to go with they're related and one of the TRPA's strategic priorities is called Tahoe Living and quote, which is to make housing more affordable for local families, workers and seniors. So, just so you understand, there's a lot of interest in developing workforce housing as we already know. So Washoe County consulted the Reno Housing Authority oh the TTD gave Washoe County until April to come back and say yes we're interested no we're not so Washoe County has consulted with the Reno Housing Authority Reno Housing Authority is interested in the project, but they need to know if the federal grants which were given to the TTD to purchase the old elementary school site have to be repaid because clearly the millions of dollars will determine the financial viability of the project there is a possibility that the federal government I believe it's the DOT gave the funds and they may determine that workforce housing is a quote higher purpose, and they may approve using the funds they gave for the mobility hub towards housing, so I just quickly looked the TTD board meeting which is next Wednesday does not have this on their agenda, so I'm assuming they have not gotten a response yet from the federal government, so I just wanted to share that information with you thanks

Media Timestamp (03:30:01 - 03:32:33)

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Public comment provided by Harry Swenson is recorded as follows:

Harry Swanson came to talk about the facility fee that we just heard about I really love Michelle's idea about identifying things as levels of priority I understand what Mick said about kicking the can down the road too many times but what Ray talked about and Jack just talked about retiring debt and maintaining the facility fee or maintaining the fee and then this is what I want to talk about right here this is very telling it reminds us how we built up a big huge fund balance before we start budgeting we're very good at budgeting we're very good at planning we're terrible at execution okay so if you want to repeat history raise the facility fee maintain your plans and don't execute and five years from now we're going to be sitting here going where did all this money come from, and then we'll say well we have money to pay salaries or take it out of this other thing we're going to play the game again don't play the game if this is the execution level realize we're only going to execute one third of our capital improvement plans every year so when you have these big budgets and then decide a facility fee decide to say okay what did you execute on last year how did you execute and what's left over oh let's put that into instead of maintaining it in that budget let's reprioritize or re-plan based upon those facts I hope you understand that, but that got us into a lot of challenges a lot of problems and a big huge cash burden okay that people were looking at okay we're going to raise the fee again, but we got this at the time 30,000,000 dollar budget surplus we're looking to do that again if you're not careful thank you very much.

Media Timestamp (03:22:49 - 03:34:57)

Public comment provided by Chris King is recorded as follows:

It's Chris King again. You guys are working hard and you're doing a good job. You're proposing significant increases, especially in the recreation fee, and I just want to advise you that you need to make the case to the public on why these are necessary. Why I mean I hear a lot of people saying, Oh we don't need to do anything to the Snowflake Lodge. It's perfectly fine. We don't need to do anything on the beach it's perfectly fine. We don't need to rebuild the beach facility there, so that's my main advice is, just you know, look out to the community you're spending a lot of money, and you're asking for a lot of money and just, please you know, try to justify these expenditures why do we need a new golf cart path at the championship golf course for example you know our golf carts crashing so you know what are the reasons for these things and why do they need to be done so anyway I support you guys I know you guys are working hard and trying to do the right thing and I just want to urge you to reach out and explain why these expenditures are absolutely necessary thank you

K. ADJOURNMENT - (For possible Action)

The meeting of the Incline Village General Improvement District Board of Trustees adjourned at 8:31 PM.

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**Written Public Comment
submitted for the
Record
April 29, 2026**

So many agenda items, so little time... [so please include my written statement in the minutes of this meeting]

IVGID exceeds its powers of Recreation and Utilities

I want to thank Mr. Rigdon for validating my husband's assertion over a decade ago that IVGID violates Dillon's rule and exceeds its powers. It has not been given the power to provide transportation. Since this fact only came to light because IVGID realized it loses money on the service, why would you seek to get that power unless you get a corresponding increase in tax revenue? Now that the Board has been advised, I expect the transportation services IVGID provides will be furnished by others.

In the same vein, if you look through the list of powers, nowhere will you find catering services, retail sales of clothing/sporting equipment, or bars and restaurants. By Dillon's rule and Nevada Supreme court rulings, these may only be permitted as necessary, not just convenient, accompaniments to sports/recreation activities. The legislative intent obviously did not equate increasing revenue to necessity; that would be an absurdity, allowing every possible use of our facilities. From past financial performance, these activities rarely increase revenue and have fairly consistently shown losses. If we're only concerned about increasing revenue, why don't we open a liquor store, or maybe sells skis/apparel? It's time for IVGID to get out of these businesses that unfairly compete with our local privately owned operations as well as require subsidies by the property owners.

IVGID Circumvents the NRS Code of Ethics

The Ordinance 7 change regarding Beach Access for Employees is yet another example of a policy that contradicts the States Code of Ethics for public employees. Take a look at 261A.400 7.a that makes it clear that if a public employee uses public resources for which members of the public pay a fee, the employee "shall" reimburse the public agency that fee. It follows that if your policy allows non-resident employees to use the beaches (as well as the other recreational venues), they must reimburse the district the resident fee plus the facility fees paid by the property owners. Other than the beaches, all employees should be paying the same rate as any other member of the public.

Even if you are going to ignore the Code of Ethics, at least clarify the language that talks about the "appropriate" beach access fee. Also, are you reinstating the boat launch perk for employees? Again, I ask you to look at the policies and practices of other Nevada public agencies. I think you will find they provide little if any free or discounted use of recreational facilities. And there is some obvious confusion by some members of the Board about the use of the word "de minimis". Please consult with legal counsel. Thousands of dollars of discounts and essentially unlimited use at golf, ski and other venues, and the soon to be unlimited (there is no stated maximum capacity at our beaches) non-resident beach access without paying the \$1570 facility fee, is not de minimis use.

On the subject of Ordinance 7 changes, where's the previously identified much-needed clarification as to when recreation privileges will be withdrawn for late payment of facility fees/property tax installments?

Facility Fees have been determined to be non-exchange transactions; they are not Fees, but are invalid Taxes

There is no authority in NRS 318 to charge a standby fee for the "availability of facilities", yet that is how the District justifies the fee. It's time for IVGID to admit the Facility Fees are a fabrication that started out of necessity with the acquisition of the beaches. The property owners were promised the fee would never exceed \$25. They were told the golf courses, and ski area would be privately owned. Just ask yourselves why don't all the other public agencies in the State charge a similar fee to fund both operations and capital? I bet the Douglas County School District would love to have a facility fee to supplement taxes.

Lack of Transparency

IVGID still has not implemented its Tyler Open Finance module that we paid for and was installed, but not fully configured over a year ago. Instead of providing the public with at least this basic tool, it now seeks to chill taxpayers' efforts to obtain public records: 1) Supporting legislative changes to make it more difficult/expensive to obtain records. 2) Publishing names of those who make requests to demonize them. 3) Refusing requests for data, claiming that querying a database creates a new record, when, in fact, the Nevada Supreme Court has repeatedly emphasized that if the data is readily available in a database, public agencies are required to provide the data, and in any available format. We have spent millions on a new financial system and training that provides tools to make that data readily available.

Until you implement the Tyler module, and until you provide responses to requests for non-confidential data, you can't even begin to claim transparency.

Water/sewer fees.

There were no details in the packet other than that HDR will have several alternatives. You may recall that the previous cost of service study showed that rates for golf and ski needed significant increases (irrigation 72.5%/snowmaking 31%); otherwise, the residential customers were subsidizing those 2 customer classes. No follow up has been presented showing whether that imbalance has been corrected since HDR presented that rate study.

Incline Village General Improvement District
 Water Rate Study
 Exhibit 18
 Summary of Cost of Service

	FY 2023 Expenses	Residential	Multi-Family	Commercial	Irrigation	Snowmaking
Revenues at Present Rates	\$5,131,625	\$2,429,076	\$1,799,909	\$394,840	\$397,450	\$110,350
Net Revenue Requirement	\$6,157,950	\$2,783,918	\$2,076,204	\$467,809	\$685,502	\$144,517
Bal. / (Def.) of Funds	(\$1,026,325)	(\$354,842)	(\$276,295)	(\$72,969)	(\$288,053)	(\$34,166)
Required % Change in Rates	20.0%	14.6%	15.4%	18.5%	72.5%	31.0%

Conclusion:

It's time for IVGID to pare back its recreational services to basic recreation: a rec center, perhaps a 9-hole golf course, beaches with simple facilities, and parks. Outsource or sell the rest. The budget should be limited to the \$4.5M in taxes plus user fees. Capital improvements should be financed by a voter approved bond, when and if IVGID's bond rating warrants. Its experiment of acquiring and operating ski, golf, restaurants, bars, retail sales have all failed to become self-sustaining. The goals of using revenues from alcohol sales and over-priced food service is a travesty. Aren't 50 years of subsidies enough to convince you of this simple truth: This local government agency is incapable of running businesses efficiently or profitably. It's time for IVGID to live within its means and stop forcing property owners to invest in/subsidize its money losing businesses. As our fiduciaries, it's time to stop the madness.

April 29 2026

My name is Steven Ross and I am a resident here in Incline Village and I have a couple of comments that are primarily directed to the members of our community.

I want to first congratulate our trustees and staff on several upgrades to how you communicate with our residents. Two examples come to mind. The first is the upgrade to the Reserve Fund Policy which is now clear and understandable. I believe this new policy will be valuable for many years to come. The second is the Legislative Agenda which gives everyone a workable and aspirational pathway to interacting with all levels of government.

I believe that most of our community members feel that our recreational facilities are a tremendous asset for them individually, to maintain an active lifestyle, as well as an enhancement to their property values. Anything man made requires routine maintenance to prevent the ravages of weathering and mechanical wear and tear. Looking at the reports it appears to me that many of our recreation facilities maintenance schedules have fallen behind over the last few years. I believe it is essential that these facilities be maintained and if possible upgraded so I would like to applaud our trustees and staff for all the projects that are beginning this summer. These include the beach house replacement, upgrades to the Chateau, bike park, skate park, rec center, champ course cart paths, and the preventive pavement work. This is an incredible amount of progress in a single year.

None of us want to pay more in our yearly recreation fee than is appropriate to keep our recreation facilities in tip top shape but I do not want to have a maintenance schedule that is inadequate to keep them running and safe. Some residents feel the fees are being raised too rapidly but I believe that if you were to account

for inflation, the amount we pay now is about equivalent to the amount that we paid ~~20~~ 10 years ago. Thank you.